

LAW AND MOTION TENTATIVE RULINGS
DATE: AUGUST 13, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 24CV02073

MARANI-SCHWARTZ v. DEER PARK ORCHARD & VINEYARD, LLC, et al.

**(UNOPPOSED) DEFENDANT CAROLINE MARANI’S MOTION TO QUASH
SERVICE OF SUMMONS**

**(UNOPPOSED) DEFENDANT ARTHUR BENDER’S MOTION TO QUASH
SERVICE OF SUMMONS**

**(UNOPPOSED) DEFENDANT MALKIM CAPITAL LLC’S MOTION TO QUASH
SERVICE OF SUMMONS**

The motion as to Marani is moot; a revised summons listing new parties following the filing of plaintiff’s second amended complaint was substitute served on Marani on July 17, 2026.

The motions as to defendants Bender and Malkim Capital LLC are granted. Based on the declarations submitted on behalf of and by defendants, no proper substitute service was made on Bender and service on the Secretary of State as to Malkim Capital failed to conform to the statutory requirements as service as a last resort.

No. 26CV01096

SHEWFELT v. CITY OF SANTA CRUZ

PETITION FOR RELIEF FROM GOVERNMENT CLAIMS ACT

As discussed below, the petition is denied.

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I. BACKGROUND AND PETITION

Sabrina Shewfelt (“petitioner”) seeks relief from the Government Claims Act presentation requirements following a trip and fall on City of Santa Cruz property on August 30, 2024. On August 26, 2025, petitioner, through counsel, served an application for late claim relief with the City of Santa Cruz. The application stated that petitioner was seeking relief because she had “serious hardships that delayed her being able to file a claim or seek counsel.” On October 1, 2025, the City of Santa Cruz denied the application on the following grounds: (1) that the application was submitted more than one year after the date of the accident and (2) the application lacked grounds to grant leave pursuant to Government Code section 911.6, subdivision (b).

Petitioner seeks relief from compliance with the Government Claims Act on the following grounds: (1) that the City’s October 1, 2025 denial letter is defective because it erroneously states petitioner’s claim was presented more than a year after accrual of the cause of action and (2) that the City’s denial letter did not address petitioner’s claim of hardship that precluded her from filing her claim in a timely manner.

The City, in its opposition, acknowledges that its denial letter mistakenly stated petitioner’s claim was denied in part because it was filed more than one year after the incident when it was not.¹ The late claimed application was in fact presented within the one year time limitation. However, the City argues that the denial correctly stated the application lacked any grounds for relief pursuant to Government Code section 911.6, subdivision (a). The City asserts petitioner still has not provided a basis for relief under the Government Claims Act and cites no authority that a technically deficient denial letter is a basis for relief. The City notes that even if it had issued *no denial* letter at all, the application would have been deemed denied. The City maintains petitioner also failed to present evidence to show excusable neglect.

II. LEGAL STANDARDS

If a tort claimant fails to present a claim within six months, they must first pursue the late claims procedure before seeking relief from the court.

Late Claims Procedure:

- Claimant must initially apply to the public entity for leave to present the claim after the 6-month period has expired. (Government Code § 911.4, subd. (a).)² The application must

¹ A written claim for injury to person or to property must have been presented within six months from the date of accrual of the cause of action. (Gov. Code § 911.2.) An application for relief from that deadline must be presented within one year. (Gov’t Code § 911.4.)

² All future statutory references are to the Government Code unless otherwise stated.

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be presented within a reasonable time, not to exceed one year after the accrual of the cause of action. (§ 911.4.)

- The governing board of the entity must timely grant or deny the application.
- If the board denies, the claimant may timely petition the superior court for relief from the claim-presentation requirement.

“If the public entity denied the application for leave to present a late claim, the claimant may file a petition for a court order relieving the claimant from the need to comply with Government Code section 945.4. The relief sought is not permission to present a late claim, but an order relieving the claimant from presenting a claim at all.” [Citations.] (*Government Tort Liability Practice* (CEB 2024) § 7.60).

Petition for an order for relief from § 945.4 must be filed within six months after the late claim application is denied by the public entity or is deemed denied. (§ 946.6.) The six-month period is mandatory. The six-month period means six calendar months or 182 days. (*Gonzales v. County of Los Angeles* (1988) 199 Cal.App.3d 601.)

Section 946.6 governs the court’s role in assessing claim presentation relief requests.

- (a) If an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4. [...]
- (b) The petition shall show each of the following:
 - (1) That application was made to the board under Section 911.4 and was denied or deemed denied.
 - (2) The reason for failure to present the claim within the time limit specified in Section 911.2.
 - (3) The information required by Section 910.
- (c) The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a *reasonable time* not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that one or more of the following is applicable:
 - (1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4.

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(2) The person who sustained the alleged injury, damage, or loss was a minor during all of the time specified in Section 911.2 for the presentation of the claim.

(3) The person who sustained the alleged injury, damage, or loss was a minor during any of the time specified in Section 911.2 for the presentation of the claim, provided the application is presented within six months of the person turning 18 years of age or a year after the claim accrues, whichever occurs first.

(4) The person who sustained the alleged injury, damage, or loss was physically or mentally incapacitated during all of the time specified in Section 911.2 or the presentation of the claim and by reason of that disability failed to present a claim during that time.

(5) The person who sustained the alleged injury, damage, or loss was physically or mentally incapacitated during any of the time specified in Section 911.2 for the presentation of the claim and by reason of that disability failed to present a claim during that time, provided the application is presented within six months of the person no longer being physically or mentally incapacitated, or a year after the claim accrues, whichever occurs first.

(6) The person who sustained the alleged injury, damage, or loss died before the expiration of the time specified in Section 911.2 for the presentation of the claim.

III. DISCUSSION

Petitioner failed to provide a sufficient basis for this Court to grant relief.

First, the Court does not find the date error in the City's denial letter automatically affords petitioner relief. Petitioner does not provide any authority for this position and simply asserts relief is appropriate because the denial was defective. Petitioner was provided with notice from the City that her claim was denied and thus, would be expected to either move forward with a petition for relief or forgo her claim. The reason for the denial would not alter that deliberative process.

Second, the City also denied petitioner's application for relief because it lacked grounds to grant leave, citing section 911.6, subdivision (b). Petitioner asserts that her "failure to file a claim form within 6 months with the City was due to excusable neglect including the major physical and personal hardship she was enduring following the subject incident." (Pet. at p. 2.) Petitioner did not file a declaration or provide any evidence to support this claim for excusable neglect, nor any evidence to suggest she somehow detrimentally relied on a defective application denial. There is absolutely no evidence to elaborate on the purported "hardship."

A claimant seeking relief must establish "by a preponderance of the evidence that failure to present their claim on time was through mistake, inadvertence, surprise or excusable neglect."

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[Citations.] The showing required of a petitioner seeking leave to file a late claim on these grounds is the same as that required by Code of Civil Procedure section 473 for relieving a party from default judgment. [Citations.]” (*People ex rel. DOT v. Superior Court* (2003) 105 Cal.App.4th 39, 43-44.) Therefore, the petition is denied.

RESPONDENT’S REQUEST FOR JUDICIAL NOTICE

1. Petitioner’s Application to Present a Late Claim, dated August 26, 2025 (Ex. A).
Granted.
2. City’s Notice of Action on Petitioner’s Application for Leave to Present a Late Claim, dated October 1, 2025 (Ex. B). Granted.

No. 25CV00045

SANTA CRUZ RIVERFRONT ASSOC. v. MEISSER

**DEFENDANT LISA M. MEISSER AS TRUSTEE’S MOTION FOR
PRELIMINARY INJUNCTION**

Defendant Meisser’s motion is continued to October 1, 2026, to be heard with her motion to appoint a referee. In the interim, plaintiff Santa Cruz Riverfront Associates, L.P. shall make no distributions to any limited partner, including Meisser.

Plaintiff filed its first amended complaint against Lisa M. Meisser as Trustee of the Everett and Lisa Meisser Trust (“defendant”) for conversion, unjust enrichment, fraud, breach of fiduciary duty and disassociation of limited partner on February 11, 2025. The action relates to a former partnership between Everett Meisser (“Everett”) and Jeffrey Newhouse (“Jeffrey”) and others from 1982 through 1989. The partners formed Santa Cruz Riverfront Associates in 1982 for the purpose of acquiring real property for development. Everett was also the CPA for the firm. At some point, Everett allegedly told the remaining partners that he paid \$50,000.00 to the firm in exchange for an 8% limited partnership interest; he also individually received a 4% limited partnership interest. Everett’s general partnership interest ended in 1989. (Second Amended Complaint (“SAC”), ¶¶ 8-23.)

This action was triggered by a 2023 conversation between Jeffrey and Everett, nine months before Everett died. Jeffrey, still a general partner of the firm, was allegedly told by Everett in October 2023 that another partner failed to pay for his 4% interest and that both he (Everett) and this other partner received the 4% interest as part of a bonus received by all general partners at firm formation. However, Jeffrey did not receive that same bonus and asked for an